



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

**DOT-E 7802 (EXTENSION)
THIRD REVISION**

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7802 is hereby extended by changing the expiration date in paragraph 10 from July 15, 1986 to June 30, 1988.

This extension applies only to party(s) listed below based on the application(s) received in accordance with 49 CFR 107.105. All other terms of the exemption remain unchanged. This extension forms part of the exemption and must be attached to it.

Donald R. Smith
Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

JUL 25 1986

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Bennett Industries
Peotone, IL

April 29, 1986

Expired - 6-30-88
NOT ACTIVE
File Archived



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**DOT-E 7802
(THIRD REVISION)**

1. Bennett Industries, Pacoima, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 for use in the transportation of the corrosive liquids and flammable liquids described in paragraph 3 below in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of liquid hazardous materials in 3.5 gallon or five-gallon capacity removable head polyethylene drums, and provides no relief from any regulation other than as specifically stated.

2. **BASIS.** This exemption is based on Bennett Industries' application dated June 17, 1982, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Corrosive liquids, classed as corrosive material, for which DOT Specification 34 polyethylene container is prescribed in 49 CFR Part 173; and flammable liquids and flammable liquid, corrosive, n.o.s., with flash point above 20°F., classed as flammable liquid, for which the packaging requirements of 49 CFR 173.119(b) are applicable and which are specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR) prior to the first shipment. Only those commodities which will not react with polyethylene and result in container failure are authorized. The specific gravity of the commodity must be no more than 1.2, and vapor pressure may not exceed 16 psia at 100°F.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** Corrosive liquid, n.o.s.; Flammable liquid, n.o.s.; Flammable liquid, corrosive, n.o.s.; or the specific chemical name, as appropriate.

5. **REGULATION AFFECTED.** 49 CFR Part 173, Subparts D and F.

6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle, rail freight and cargo vessel.

7. **SAFETY CONTROL MEASURES.** Packagings prescribed are non-DOT specification removable head, molded, polyethylene containers, without overpack, having a rated capacity of 3.5 or five gallons.

a. One design constructed of polyethylene with a minimum thickness of 0.070 inch measured at any point;

b. One design constructed of polyethylene with a minimum thickness of 0.090 inch, measured at any point.

In addition, each container must:

i. Be made of polyethylene having properties that conform to Type III, Appendix B of 49 CFR Part 178, except that the melt index value may be 12.0 maximum.

ii. Be qualified in accordance with the tests prescribed in 49 CFR 178.19-7, except that the requirement for hydrostatic pressure shall be five psi for five minutes. Results of these tests to be as specified in the test reports (dated April 21 and 27, 1977) included in Bennett Industries' petition dated April 27, 1977.

iii Be marked "NRC".

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. August 1, 1984.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

AUG 23 1982

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.